

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

----- X
ANTHONY HYMAN and REGENIA HYMAN,
Plaintiffs,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE JOSE CINTRON (Shield 4861),
NYPD DETECTIVE WILBERT HERNANDEZ (Shield 4925),
NYPD DETECTIVE MATTHEW DEGROTE (Shield 3462),
NYPD DETECTIVE DANIEL BOYLAN (Shield 1495),
NYPD DETECTIVE STEPHANIE E. CEPEDA (Shield 3137),
NYPD SERGEANT KARINA D. BONILLA (Shield 1252),
NYPD SERGEANT CECILIA LUCKIE (Shield 4593),
NYPD POLICE OFFICER JAMES M. CARROLL (Shield 9749),
NYPD POLICE OFFICER LUIS E. CRUZ (Shield 22258),
NYPD POLICE OFFICERS "JOHN/JANE DOE" 1-10 and
POLICE SUPERVISING OFFICERS "RICHARD/RENE ROE"
11-20.

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

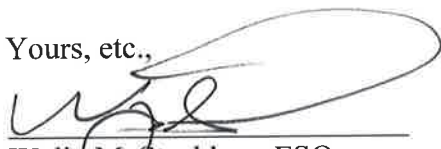
Plaintiff designates BRONX
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Verified Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 29, 2024

Yours, etc.,


Wylie M. Stecklow, ESQ.
WYLIE STECKLOW PLLC
Attorneys for Plaintiffs
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(212) 566 8000

TO: THE CITY OF NEW YORK, 100 Church Street, NY NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX-----
ANTHONY HYMAN and REGENIA HYMAN,

Plaintiffs,

-against-

Index No.:

VERIFIED
COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE JOSE CINTRON (Shield 4861),
NYPD DETECTIVE WILBERT HERNANDEZ (Shield 4925),
NYPD DETECTIVE MATTHEW DEGROTE (Shield 3462),
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NYPD DETECTIVE STEPHANIE E. CEPEDA (Shield 3137),
NYPD SERGEANT KARINA D. BONILLA (Shield 1252).
NYPD SERGEANT CECELIA LUCKIE (Shield 4593),
NYPD POLICE OFFICER JAMES M. CARROLL (Shield 9749),
NYPD POLICE OFFICER LUIS E. CRUZ (Shield 22258),
NYPD POLICE OFFICERS "JOHN/JANE DOE" 1-10 and
POLICE SUPERVISING OFFICERS "RICHARD/RENE ROE" 11-20.

Defendants.

The plaintiff, by their attorneys WYLIE STECKLOW PLLC, sets forth the following,
upon information and belief, as and for his Verified Complaint:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State and City of New York. On March 3, 2023, at approximately 6:15 a.m., Plaintiffs, while lawfully in their home at 2354 Paulding Avenue, Apt 1B, County of Bronx, New York, were subject to an unlawful search, home invasion, detention, arrest, and excessive use of force by the defendant officers. In addition, Plaintiffs were subjected to a deliberate indifference to their medical needs that resulted in plaintiff ANTHONY

HYMAN becoming pulseless numerous times before he was brought by ambulance to an emergency room. Plaintiff ANTHONY HYMAN suffered at least six seizures before being admitted to the hospital and had ‘coded’ twice (become pulseless requiring ALS – life saving techniques). He was so close to death that the hospital contacted LIVEON NY and created a case ID as Plaintiff ANTHONY HYMAN was a registered organ donor. Plaintiff ANTHONY HYMAN was transferred from the emergency room to the intensive care unit, where he stayed for approximately seven (7) days, and subsequently remained in another part of the hospital for an additional two (2) weeks. All charges against the plaintiffs were dismissed, for plaintiff ANTHONY HYMAN on October 10, 2023, and for plaintiff REGENIA HYMAN on or about May 15, 2023. Plaintiffs were deprived of their rights under the laws of the State of New York and their constitutional, common law, and statutory rights when the individual defendants entered their home pursuant to a search warrant and unlawfully searched, detained, and subjected the plaintiffs to excessive force, passed along false accusations and information to prosecuting attorneys and engaged in the malicious prosecution of the plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

2. Plaintiff brings this action for compensatory damages, punitive damages and attorneys’ fees pursuant to State common law tort claims, and pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his civil rights, as such rights are secured by those statutes and by the Constitution of the United States, pursuant to Article I of the Constitution of the State of New York, pursuant to New York City Administrative Code §§ 8-802, 803(a-c) and 805, and pursuant to New York State Civil Rights Law §28.

3. Plaintiffs seek herein redress for the constitutional and tortious wrongs injuries inflicted on them by Defendants under color of law.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

5. That the plaintiff ANTHONY HYMAN (hereinafter “ANTHONY”) was and still is a resident of The City and State of New York, Bronx County.

6. That the plaintiff ANTHONY was and still is a citizen of the United States of America.

7. That plaintiff ANTHONY is a Black male.

8. That the plaintiff REGENIA HYMAN (hereinafter “REGENIA”) was and still is a resident of The City and State of New York, Bronx County.

9. That the plaintiff REGENIA was and still is a citizen of the United States of America.

10. That plaintiff REGENIA is a Black female.

11. That the defendant THE CITY OF NEW YORK (hereinafter “CITY”) was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

12. That the defendant CITY maintains a police department (hereinafter NYPD) which CITY has duly authorized to perform all functions of a police department acting under the direction and supervision of defendant CITY.

13. That on March 3, 2023, the defendant NYPD DETECTIVE JOSE CINTRON (Shield 4861), (hereinafter “DET. CINTRON”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

14. That on March 3, 2023, the defendant NYPD DETECTIVE WILBERT HERNANDEZ (Shield 4925), (hereinafter “DET. HERNANDEZ”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

15. That on March 3, 2023, the defendant NYPD DETECTIVE MATTHEW DEGROTE (Shield 3462), (hereinafter “DET. DEGROTE”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

16. That on March 3, 2023, the defendant NYPD DETECTIVE DANIEL BOYLAN (Shield 1495), (hereinafter “DET. BOYLAN”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

17. That on March 3, 2023, the defendant NYPD DETECTIVE STEPHANIE E. CEPEDA (Shield 3137), (hereinafter “DET. CEPEDA”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

18. That on March 3, 2023, the defendant NYPD SERGEANT KARINA D. BONILLA (Shield 1252), (hereinafter “SGT. BONILLA”) was a duly sworn New York City Police Officer

acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

19. That on March 3, 2023, the defendant NYPD POLICE OFFICER JAMES M. CARROLL (Shield 9749), (hereinafter “PO CARROLL”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

20. That on March 3, 2023, the defendant NYPD POLICE OFFICER LUIS E. CRUZ (Shield 22258), (hereinafter “PO CRUZ”) was a duly sworn New York City Police Officer acting under the supervision and control of NYPD and CITY. This defendant is sued in their individual and official capacity.

21. That on March 3, 2023, the defendant POLICE OFFICERS “JOHN/JANE DOE” 1-10 were duly sworn New York City Police Officers and/or senior individuals within NYPD, acting under the supervision and control of NYPD and CITY.

22. That on March 3, 2023, the defendant POLICE OFFICERS “RICHARD/RENE ROE” 11-20 were duly sworn supervising New York City Police Officers and/or senior individuals within NYPD, acting under the supervision and control of NYPD and CITY.

23. That defendants DET. CINTRON, DET. HERNANDEZ, DET. DEGROTE, DET. BOYLAN, DET. CEPEDA, SGT. BONILAA, SGT LUCKIE, PO CARROL, PO CRUZ, the JOHN/JANE DOE and the RICHARD/RENE ROE defendants are referred to collectively herein as “individual defendants”.

24. That at all times hereinafter mentioned, the defendants were all acting under color of law, statute, ordinance, rule, regulation, custom and/or usage, of State law.

25. That at all times hereinafter mentioned the defendants' conduct deprived the plaintiffs of rights, privileges and/or immunities guaranteed under the Laws and Codes of The City of New York, as well as the Laws of The State of New York, The U.S. Constitution and/or Federal Law.

26. That at all times hereinafter mentioned, all of the acts of the individual defendants were done while acting individually and as New York City Police officers and/or supervisor(s)

27. That said conduct was within the scope of the individual defendants' employment by defendant CITY and NYPD.

COMPLIANCE WITH GENERAL MUNICIPAL LAW

28. That the plaintiffs have complied with GML 50-e by each serving a Notice of Claim on the defendant CITY on May 30, 2023, both within 90 days of the statutory date of accrual.

29. That each of the plaintiffs submitted to a hearing pursuant to GML § 50-h on or about September 13, 2023.

30. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment, or payment thereon has been neglected and/or refused.

31. That this action was commenced within one (1) year and ninety (90) days from date that the incident complained of.

STATEMENT OF FACTS

32. Plaintiffs ANTHONY and REGENIA HYMAN have been married for 22 years and live in the Bronx. They have a daughter and three grandchildren ranging from 4-18.

33. Plaintiff REGENIA HYMAN has been working at the United States Postal Service



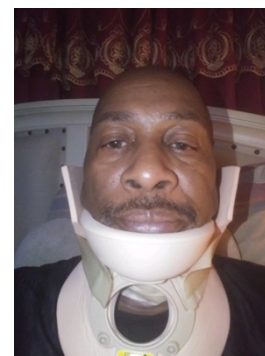
for six years, including as a front-line worker throughout the pandemic.

34. Plaintiff ANTHONY HYMAN has worked numerous physical jobs including



mailroom, and even was a popular employee of a local supermarket, working in the deli counter. He was also a very active, even serving as Vice President of Convent Avenue Baptist Church – Prison Ministry. A church that helps individuals returning from prison reenter the community and stay out of the prison system.

35. Due to ongoing issues with his neck from his years of physical labor, on December 30, 2022, plaintiff ANTHONY HYMAN had cervical spinal fusion surgery. During the ensuing months he was recovering from this very serious surgery, and he was instructed by the medical professionals to wear a hard collar and not engage in any physical activity. His recovery was proceeding well until March 3, 2023.



36. In the early morning of March 3, 2023, plaintiff REGENIA HYMAN was just waking up, as she had to work that morning. At 6:15 a.m., she was still in her sleeping garments which consisted of underwear (panties) and nothing else, when multiple members of the NYPD entered her home without her hearing, and all of a sudden, they were entering her bedroom.

37. Plaintiff REGENIA HYMAN had her hands in the air, her breasts and body exposed, and was soon on the floor crawling out of the bedroom to sit on a stool next to the bedroom door.

38. JOHN DOE 1 officer had a metal shield pressed against the left side of plaintiff REGENIA HYMAN's body including her bare breasts.

39. Plaintiff REGENIA HYMAN heard the officers in the bedroom yelling at her husband and heard her husband yelling in pain.

40. Plaintiff ANTHONY HYMAN awoke to members of the NYPD in his bedroom.

41. As plaintiff ANTHONY HYMAN sought to stand up, due to the stress and his weakness, his knee buckled, and he fell to the ground.

42. Individual defendants, including defendant DET. CINTRON, defendant DET. HERNANDEZ and others, began to twist plaintiff ANTHONY HYMAN'S arm behind his back giving him excruciating pain and exacerbating an injured left shoulder (that had a confirmed rotator cuff tear with a needed surgery postponed due to the spine surgery).

43. Next plaintiff REGENIA HYMAN soon saw her husband dragged out of the bedroom, placed on the floor of their living room face down with an individual defendant believed to be DET. CINTRON placing his foot on top of plaintiff ANTHONY HYMAN's recently fused neck and another individual defendant, believes to be DET. HERNANDEZ twisting plaintiff ANTHONY HYMAN's arm.

44. Both plaintiffs REGENIA and ANTHONY HYMAN sought to inform the officers of plaintiff ANTHONY HYMAN'S recent surgery and the precarious situation with his neck. These warnings of concern were ignored.

45. Eventually, defendants DET. CEPEDA, and SGT. LUCKIE, brought plaintiff REGENIA HYMAN into her bedroom and let her put clothes on as they watched her.

46. After she was dressed, plaintiff REGENIA HYMAN was brought back to the living room.

47. Other than yelling “where are the guns, where are the drugs”, at no time did anyone inform Plaintiff REGENIA HYMAN why the individual defendants had entered her home. Nobody showed her a warrant.

48. As the individual defendants began to walk plaintiff ANTHONY HYMAN out of the apartment in handcuffs, due to his state of pain and weakness, individual officers had to provide physical support to plaintiff ANTHONY HYMAN while ushering him outside.

49. When plaintiff ANTHONY HYMAN was brought to the police van in front of the building where he lived, he stepped into the van and was hunched over inside when a member of the NYPD approached him wearing plaintiff ANTHONY HYMAN’S boxing gloves.

50. This individual defendant, believed to be PO CRUZ, told plaintiff ANTHONY HYMAN that these gloves were unlawful. Then defendant PO CRUZ punched plaintiff ANTHONY HYMAN in the stomach, knocking the wind out of him.

51. Defendant PO CRUZ punched plaintiff ANTHONY HYMAN in the stomach a second time, again knocking the wind out of him.

52. At the time that this was occurring, another defendant, believed to be PO CARROL, was present and did not stop defendant PO CRUZ from assaulting plaintiff ANTHONY HYMAN.

53. A few minutes after members of the NYPD had removed plaintiff ANTHONY HYMAN from her home, individual defendant officers including defendant SGT. CEPEDA and defendant SGT. LUCKIE began to remove plaintiff REGENIA HYMAN from their home. Plaintiff REGENIA HYMAN asked the individual defendants to place a jacket or something to hide the handcuffs so the neighbors wouldn’t see. The officer said no but placed plaintiff

REGENIA HYMAN's hood over her head to hide her face. Plaintiff REGENIA HYMAN shook the hood off and held her head high as she had done nothing wrong.

54. Once plaintiff REGENIA HYMAN was outside the apartment building, it seemed like there was "a parade of police" outside with one neighbor expressing that they counted 40 police present.

55. Plaintiff REGENIA HYMAN was moved to the same police van with plaintiff ANTHONY HYMAN, and they were driven to the 49th precinct.

56. Upon entry to the precinct, plaintiff REGENIA HYMAN was handcuffed to a chair while plaintiff ANTHONY HYMAN was handcuffed and placed in the cell behind her.

57. The officer in the desk in front of them was speaking, and as plaintiff ANTHONY HYMAN responded, plaintiff REGENIA HYMAN could hear that her husband's voice was shaky.

58. As plaintiff REGENIA HYMAN was fingerprinted and photographed, she expressed concern about her husband. She told defendant SGT. BONILLA that something was wrong. Defendant SGT. BONILLA's response was to provide drinking water to plaintiff ANTHONY HYMAN.

59. Defendant SGT. BONILLA knew that plaintiff ANTHONY HYMAN was on medication, and expressed that when she takes medication, she needs to eat. Rather than provide medical assistance or take plaintiff ANTHONY HYMAN to the hospital, the individual defendants chose instead to drive plaintiffs to a McDonalds that was on the way to Central Booking.

60. As they were leaving the precinct for the trip to central booking with a stop at McDonalds, plaintiff ANTHONY HYMAN was lightheaded and sweating.

61. When some of the individual defendant officers tried to place plaintiff ANTHONY HYMAN in a van, plaintiff ANTHONY HYMAN was so weak and wobbly that he fell into the

inside of the van. This was another indication to the individual defendants that plaintiff ANTHONY HYMAN was in distress and in need of medical assistance.

62. The officers placed plaintiff ANTHONY HYMAN in what can be described as a captain's chair that was facing the side of the van, perpendicular to the front of the van. There was a partition separating this captain's seat from the front seat of the van.

63. Members of the NYPD next drove to a McDonald's parking lot that was across the street from a hospital.

64. One of the two individual defendant officers present, left the van to enter McDonalds.

65. Plaintiff ANTHONY HYMAN began to have a seizure. Plaintiff ANTHONY HYMAN was handcuffed in his chair.

66. Plaintiff ANTHONY HYMAN began to slide down the chair.

67. Plaintiff REGENIA HYMAN, who was handcuffed, verbally alerted the individual defendant officer that was in the front of the van that her husband was sliding down the chair and having a seizure, and she also tried to physically support plaintiff ANTHONY HYMAN with her foot and stop his sliding down the chair.

68. As the individual defendant officer that was in the front of the van entered the back of the van, plaintiff ANTHONY HYMAN slid off the chair, hitting his head on the floor very hard, and his body landed in the space between the chair and the partition to the front.

69. Plaintiff REGENIA HYMAN was witnessing this and begging the individual defendant officer to uncuff her so she could help, but the officer refused.

70. Plaintiff REGENIA HYMAN told the officer to be careful as plaintiff ANTHONY HYMAN was convulsing and could hit his head on the bottom of the chair and cut his head.

71. Plaintiff REGENIA HYMAN told the officer to turn her husband's head to the side. When the individual defendant officer turned Anthony's head to the side, blood came gushing out. Plaintiff REGENIA HYMAN was present observing all of this as plaintiff ANTHONY HYMAN continued to seize and convulse, his handcuffs on him stopping his body from being able to move around.

72. Finally, these individual defendants decided that medical attention was needed and an ambulance was called.

73. Once the ambulance arrived, the police let the ambulance staff take control of plaintiff ANTHONY HYMAN but refused plaintiff REGENIA HYMAN's pleas to uncuff her to help, and to let her go with her husband to the hospital.

74. When the ambulance arrived, the medics found Mr. Hyman laying on his right on floor of a walk-in van unresponsive, bleeding from his mouth due to a laceration to his tongue from the first seizure, but yet, with handcuffs still on him and behind his back.

75. The medics had plaintiff ANTHONY HYMAN uncuffed and transferred him to a stretcher.

76. Plaintiff ANTHONY HYMAN suffered at least four additional seizures during the short transportation to the hospital. The medics indicated that due to the proximity of the hospital, they chose not to do life saving techniques (ALS) due to ER being directly across the street from location of patient.

77. Although plaintiff ANTHONY HYMAN was pulseless and close to death, the individual defendants refused to allow his wife to remain with him, and instead plaintiff REGEIA HYMAN was transported to Central Booking and held in the back of the police van, crying for more than thirty minutes.

78. Thereafter, plaintiff REGENIA HYMAN was placed into a cell. Eventually, some of the individual defendants came to her cell and began asking her questions. These officers failed to provide any update to plaintiff REGENIA HYMAN about her husband's health.

79. The individual defendants at the hospital were lying to the medical professionals indicating that they were in touch and speaking with plaintiff REGENIA HYMAN. In fact, the hospital was trying to reach Regenia and calling her cell phone but unable to reach her, as she was detained. The individual defendants did not facilitate a direct communication between the medical professionals and plaintiff REGENIA HYMAN.

80. Eventually, plaintiff REGENIA HYMAN was taken from the cell to a minivan, where she was uncuffed and driven to the hospital.

81. During the ride to the hospital the police refused to provide plaintiff REGENIA HYMAN with any update on her husband.

82. At the hospital, plaintiff REGENIA HYMAN was brought to a room with a curtain in the middle, handed a Desk Appearance Ticket and the officers left.

83. When plaintiff REGENIA HYMAN removed the curtain, she saw her husband, plaintiff ANTHONY HYMAN. He was intubated and had many, many tubes and wires connected to him. He was on life support in intensive care, validating plaintiff REGENIA HYMAN's worst concern, that she had witnesses her husband dying in front of her.



84. As explained by one medical report, plaintiff ANTHONY HYMAN "*sustained significant and permanent injuries as a result of being attacked by what would be described by*

most people as an army of police officers. He was naked in bed at the time that the police officers entered his home. He was thrown to the floor and handcuffed after his shoulder was pulled over his head. He witnessed his wife in only her panties being restrained with her hands over her head and he ultimately sustained injuries that almost cost him his life. Unfortunately, as a result of his injuries the condition of his cervical spine has significantly worsened, and the condition of his left shoulder has significantly worsened. He sustained injuries to his left knee and right hand. He remains under the care of multiple practitioners.”

85. Upon entry to the hospital, plaintiff ANTHONY HYMAN was placed in the intensive care unit (“ICU”) as “critical care was necessary to treat or prevent imminent or life-threatening deterioration of the following conditions: seizure, cardiac arrest, PNA (pneumonia) R pleural effusion.”

86. Even after the initial loss of pulse at the hospital, Anthony Hyman lost pulse on 2 subsequent occasions and again had full ACLS with epinephrine, calcium, bicarb, and return of spontaneous circulation. However, he was neuro nonresponsive, and therefore, could not undergo a full examination.

87. While in the ICU, plaintiff ANTHONY HYMAN had numerous catheters connected to and inside his body including: Active Central Venous Catheter Line, Peripherally Inserted Central Catheter line, Peripheral Intravenous Line, Drain, Airway, Intraosseous Line, Epidural Line, Arterial Line, Nasogastric/Orogastric Tube, hemodialysis Catheter, umbilical venous catheter, foley catheter, intrauterine pressure catheter.

88. While in the hospital, he continued to experience seizures and unfortunately, even caught pneumonia in his right lung due to an infectious organism.

89. A CT Head review indicates possible early diffuse loss of gray white differentiation which is early detection of a traumatic brain injury called Hypoxic ischemic encephalopathy that is related to loss of oxygen or blood flow to the brain.

90. Finally, on March 8, 2023, five days after the individual defendants brought plaintiff ANTHONY HYMAN to a McDonalds parking lot rather than a hospital, he was extubated and able to breath on his own.

91. Due to the lengthy intubation, plaintiff ANTHONY HYMAN suffered trauma to his



teeth as it significantly loosened his front teeth, which eventually required him to have multiple teeth removed.

92. Once plaintiff ANTHONY HYMAN was awake and extubated, he had to start to rehabilitate his body and his brain. He had suffered impaired mobility, impaired balance, generalized weakness and decreased endurance. Plaintiff ANTHONY HYMAN also had decreased muscle strength ... overall limited functional mobility.

93. On March 14, 2023, he was diagnosed with transaminitis, an injury to the liver when a person is required to take multiple prescription medications. Transaminitis is high levels of a particular type of enzyme in your blood, called a transaminase... If a blood test shows your transaminases are elevated, it suggests that your liver is under stress.

94. Further, plaintiff ANTHONY HYMAN was suffering significant neurological issues including memory loss and decreased vision.

95. Among the memory loss, was the painful realization that plaintiff ANTHONY HYMAN woke up from his injuries in intensive care with no memory of his own grandson.

96. Plaintiff ANTHONY HYMAN's vision difficulties was found to be connected with a finding of a superior ophthalmic vein thrombosis.

97. On March 24, 2023, plaintiff ANTHONY HYMAN finally went home, though he had numerous medical follow ups, including one in the next 48 hours related to the superior ophthalmic vein.



98. The vibrant, healthy, strong man that the NYPD found in his bed on March 3, 2023 (image left from 2/6/23), was not checking out of the hospital. Plaintiff ANTHONY HYMAN was now a much older, weaker, lethargic shell of the man he was a few weeks earlier (image right from 3/24/23).



99. Plaintiff ANTHONY HYMAN suffered many significant and life altering injuries, including,

- Transaminitis with elevated LFTs;
- Seizures, status epilepticus;
- Cardiac arrest;
- Acute respiratory failure;
- Septic shock;
- Possible aspiration Pneumonia;
- Dental trauma with intubation;
- Hoarse voice;
- Anemia (chronic);
- Acute kidney injury;
- Thrombocytosis¹;
- Hypomagnesemia²;

¹ Thrombocytosis is a disorder in which your body produces too many platelets.

[https://www.mayoclinic.org/diseases-conditions/thrombocytosis/symptoms-causes/syc-20378315#:~:text=Thrombocytosis%20\(throm%2Dboe%2Dsie,condition%2C%20such%20as%20an%20infection.](https://www.mayoclinic.org/diseases-conditions/thrombocytosis/symptoms-causes/syc-20378315#:~:text=Thrombocytosis%20(throm%2Dboe%2Dsie,condition%2C%20such%20as%20an%20infection.)

² Hypomagnesemia happens when you have a low level of magnesium in your blood.

<https://my.clevelandclinic.org/health/diseases/23264-hypomagnesemia#:~:text=What%20is%20hypomagnesemia%3F,function%2C%20nerve%20conduction%20and%20more.>

- Hypokalemia³;
- Hyperphosphatemia;
- Hyponatremia⁴ (resolved).

100. Since being released from the hospital, plaintiff ANTHONY HYMAN has continued to see numerous medical professionals for follow up care, including an orthopedic hand surgeon, a seizure specialist, a mental health care professional, his primary care physician, he has undergone shoulder surgery, he has had teeth pulled, he has seen a neurologist for headaches, a cardiologist, a neuro ophthalmology physician, an orthopedic neck doctor, a head trauma – brain injury rehabilitation medical specialist.

101. Plaintiff ANTHONY HYMAN has been diagnosed with other continued harm including impairment of the following neuropsychological functions:

- verbal learning and memory trials
- fluctuating visual attention and processing
- acquisition of non-verbal learning and memory trials
- sequencing (auditory)
- response inhibition
- information processing speed

102. Plaintiff ANTHONY HYMAN diagnostic impressions related to this incident also include:

- ➔ Acute/Hypoxic Respiratory Failure (as indicated in Montefiore medical records)
- ➔ Cardiac Arrest Seizure/Syndrome (as indicated in Montefiore medical records)
- ➔ Seizure disorder; status epilepticus (as indicated in Montefiore medical records)

³ Hypokalemia refers to a lower than normal potassium level in your bloodstream. Potassium helps carry electrical signals to cells in your body. It is critical to the proper functioning of nerve and muscles cells, particularly heart muscle cells. [https://www.mayoclinic.org/symptoms/low-potassium/basics/definition/sym-20050632#:~:text=Low%20potassium%20\(hypokalemia\)%20refers%20to,cells%2C%20particularly%20heart%20muscle%20cells](https://www.mayoclinic.org/symptoms/low-potassium/basics/definition/sym-20050632#:~:text=Low%20potassium%20(hypokalemia)%20refers%20to,cells%2C%20particularly%20heart%20muscle%20cells).

⁴ Hyponatremia occurs when the concentration of sodium in your blood is abnormally low. <https://www.mayoclinic.org/diseases-conditions/hyponatremia/symptoms-causes/syc-20373711>

- ➔ Traumatic Brain Injury (Head injury due to seizure; as indicated in Montefiore medical records)
- ➔ Severe Encephalopathy (as indicated on Ceribell EEG; Montefiore medical records)
- ➔ Neuropsychological Impairment, secondary to brain trauma (cumulative effect);

as well as permanent cognitive defects. Due to the severity of his brain trauma, and thus limited cognitive reserves, the normal aging process becomes more difficult as he has progressive cognitive decline.

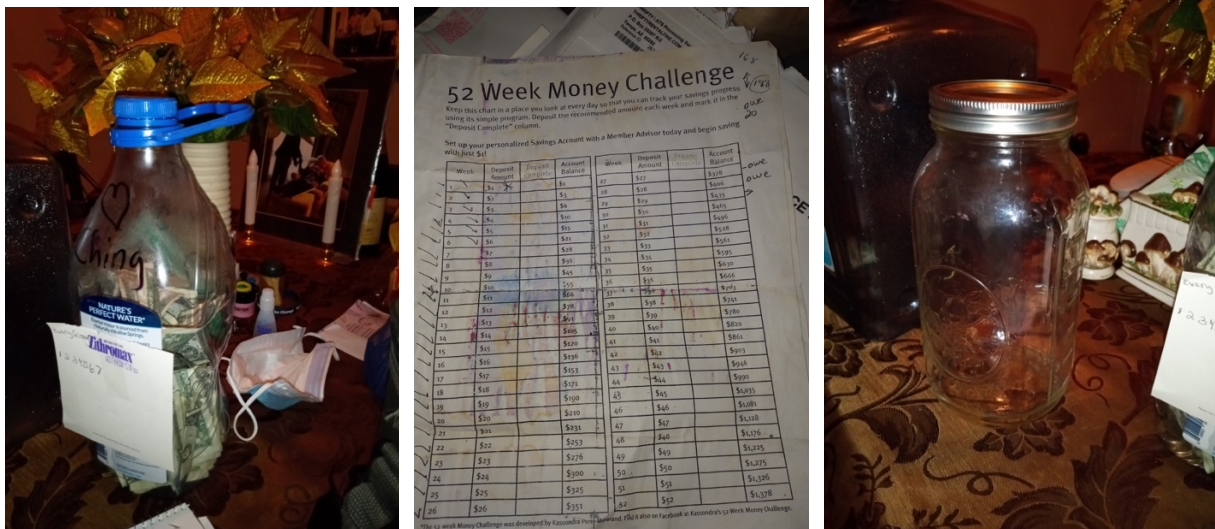
103. All the while that plaintiffs REGENIA and ANTHONY HYMAN were taken to the precinct and then McDonalds, and then the hospital and central booking, some of the individual defendants remained in the plaintiffs' home, upon information and belief, for nearly 12 hours.

104. Their home was ransacked, and while plaintiff ANTHONY HYMAN was clinging to life in the ICU, his wife, plaintiff REGENIA HYMAN was unable to organize her home as she was trying to take care of her husband.

105. Other specific harm to the apartment included:

- a. Breaking the storage drawers and the hinges that attached them to the bed;
- b. Breaking the end table on plaintiff ANTHONY HYMAN's side of the bed;
- c. Breaking the sette sofa by turning it upside down;
- d. Breaking the soundbar that was on the bedroom dresser;
- e. Smashing glass figurines;
- f. Breaking the hinges on the closet door.

106. Plaintiffs ANTHONY and REGENIA HYMAN had a savings plan that included 52 week savings plan, which they saved a bit each week, and checked off a box to confirm. This savings was kept at home, in various jars around their apartment.



107. Over \$6,000 was missing from those jars, this was specifically money being saved for a car.

108. Two tablets including a Samsung Galaxy are missing from the plaintiffs' home as well.

109. This incident impacted both plaintiffs in a significant manner.

110. Prior to this incident, each work day, plaintiff REGENIA HYMAN would get up and go to work as a United States Postal Worker. Plaintiff ANTHONY HYMAN would do laundry, clean their home, make their bed, do their laundry, fold their clothes, go shopping, mop their floors, prep their meals.

111. Since this incident, plaintiff REGENIA HYMAN must wake up earlier and plaintiff ANTHONY HYMAN must wake up with her. This is because plaintiff ANTHONY HYMAN is unable to dress or bathe himself, so his wife must do this for him before she leaves for work.

112. Plaintiff ANTHONY HYMAN can no longer cook, clean, shop, mop or handle any of the home responsibilities and services he used to handle.

113. Prior to the incident, plaintiff ANTHONY HYMAN was very romantic, mentally and physically with his wife, plaintiff REGENIA HYMAN, multiple times per week.

114. Since the incident, plaintiff ANTHONY HYMAN is unable to be romantic, mentally and physically with his wife, plaintiff REGENIA HYMAN.

115. Since this incident, plaintiff ANTHONY HYMAN has suffered nightmares that wake his wife in the middle of the night to the point that she must wake him up as he is screaming and yelling.

116. Since the incident, plaintiff ANTHONY HYMAN is afraid to leave his home and is very jumpy to any noise at the home. He suffers near daily panic attacks and spends hours each day staring through the peep hole into the hallway outside of this apartment.

117. While plaintiff REGENIA HYMAN attempts to be strong for her husband, there are multiple times per week she breaks down and cries. She has found herself seeking to hide while out on delivery when she feels the emotions overcoming her.

FIRST CLAIM FOR RELIEF

**Violation of Civil Rights Pursuant to 42 U.S.C. § 1983
(General Allegations, Fourth, Fifth and Fourteenth Amendments)**

118. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

119. In committing the acts complained of herein defendants acted under color of state law to deprive plaintiffs of certain constitutionally protected rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable searches;
- b. the right to be free from warrantless searches of the home in the absence of consent, exigent circumstances, or any other exception to the warrant requirement;
- c. the right to be free from excessive destruction of property during a search of the home;

d. and the right not to be deprived of property without due process of law.

120. In violating plaintiffs' rights as set forth above, and other rights that will be proven at trial, defendants conducted a search of plaintiff's home that was based on false or inaccurate information, during which defendants caused harm to plaintiff and unnecessary and excessive damage to plaintiff's property, in violation of plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

121. As a direct and proximate result of defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

122. The conduct of defendants was willful, malicious, oppressive and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
Respondeat Superior (City of New York)

123. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

124. Defendant the CITY OF NEW YORK is liable for the actions of the individual defendants under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION
FALSE ARREST UNDER 42 U.S.C. § 1983

125. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

126. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a violation of rights that are clearly established under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

127. The individual defendants, individually and collectively, intended to confine Plaintiffs and did in fact cause Plaintiffs to be confined without their consent.

128. The individual defendants, individually and collectively, caused plaintiffs to be confined by detaining, arresting and seizing Plaintiffs and by thereafter actually confining them to and in the 49th Precinct, a transport van, and eventually central booking for plaintiff REGENIA HYMAN.

129. Specifically, the individual defendants, actually and physically seized and arrested plaintiffs, or caused plaintiffs to be actually and physically seized and arrested, without an arrest warrant and without probable cause.

130. The conduct of the individual defendants, in detaining, seizing and arresting plaintiffs without an arrest warrant was not privileged by probable cause because each and all of them lacked any reasonably trustworthy information of facts and circumstances indicating that plaintiffs had committed any crime.

131. Further, NYPD Supervising Officer RICHARD/RENE ROES caused plaintiffs to be confined, and caused plaintiffs confinement to continue, after and despite the fact that the search of their home did not disclose anything illegal that would provide probable cause to arrest either plaintiff REGENIA HYMAN or plaintiff ANTHONY HYMAN.

132. Each of the individual defendants and the JOHN DOE Defendants, individually and collectively, caused plaintiffs to be confined by intentionally and knowingly acting in bad faith.

133. Specifically, each and all of the Defendants in bad faith caused plaintiffs' confinement to continue despite the fact that they knew that they had found nothing in the search of the plaintiffs' home.

134. The cases against the plaintiffs were dismissed on May 15, 2023 and on October 10, 2023.

135. As a result of the Individual Defendants' actions, plaintiffs were subject to an illegal, improper and false arrest by the defendants and taken into custody and cause to be falsely detained, confined, and incarcerated without probable cause, privilege or consent.

136. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

FOURTH CAUSE OF ACTION
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983

137. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

138. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a violation of rights that are clearly established under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

139. Each of the Individual Defendants, individually and collectively, intended to confine the plaintiffs and did in fact cause plaintiffs to be confined without their consent.

140. Each of the Individual Defendants, individually and collectively, caused the plaintiffs to be confined by arresting and seizing the plaintiffs and by thereafter actually confining them at the 49th Precinct, the police van and central booking.

141. Each of the Individual Defendants and each and all of the JOHN/JANE DOE Defendants, individually and collectively, caused then plaintiffs to be confined by intentionally and knowingly acting in bad faith.

142. Specifically, each and all of the Defendants in bad faith caused Plaintiff's confinement to continue despite the fact that they knew that there was no reason to believe that either plaintiff REGENIA HYMAN or plaintiff ANTHONY HYAN had committed any crime.

143. Defendants' conduct in confining plaintiffs, and causing their confinement to continue was not privileged by probable cause because each and all of them were aware that the plaintiffs had not committed any crime or wrongdoing.

144. The cases against the plaintiffs were dismissed on May 15, 2023 and on October 10, 2023.

145. As a result of the Individual Defendants' actions, the plaintiffs were subject to an illegal, improper and false arrest by the defendants and taken into custody and cause to be falsely detained, confined, and incarcerated without probable cause, privilege or consent.

146. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend

themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

FIFTH CAUSE OF ACTION
DENIAL OF CONSTITUTIONAL RIGHT TO
FAIR TRIAL UNDER 42 U.S.C. § 1983

147. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

148. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a violation of rights that are clearly established under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States.

149. Defendant DET. HERNANDEZ knowingly and intentionally transmitted false information to the BRONX County District Attorney by swearing in a criminal complaint that plaintiff REGENIA HYMAN was acting in concert with plaintiff ANTHONY HYMAN in possessing various narcotics.

150. Defendant DET. HERNANDEZ knowingly and intentionally transmitted false information to the BRONX County District Attorney by swearing in a criminal complaint that they found in the apartment home of plaintiff REGENIA HYMAN and plaintiff ANTHONY HYMAN various narcotics including multiple glassines, ziplock bags and tin foil containers of various narcotics.

151. Information transmitted by a police officer and stating that two individuals acted in concert in possessing narcotics is likely to influence the decision of any jury weighing the evidence presented in a prosecution of those criminal defendants.

152. Information transmitted by a police officer and stating that they found in the apartment home of criminal defendants various narcotics including multiple glassines, ziplock bags and tin foil containers of various narcotics is likely to influence the decision of any jury weighing the evidence presented in a prosecution of those criminal defendants.

153. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

154. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

155. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a violation of rights that are clearly established under the Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

156. Each of the Defendants, individually and collectively, intended to commence, cause the commencement of, or cause the continuation of, criminal proceedings against the plaintiffs, and each of them individually and collectively did in fact commence or continue, or cause the commencement or continuation of, criminal proceedings against plaintiffs without probable cause.

157. Each of the Individual Defendants, individually and collectively, commenced or continued, or caused the commencement or continuation of, criminal proceedings against plaintiffs by intentionally and knowingly failing to make a complete and full statement of facts to the District Attorney.

158. Specifically, Defendant DET. HERNANDEZ knowingly and intentionally transmitted false information to the New York County District Attorney by swearing in a criminal complaint that plaintiffs had conspired with each other, and that the plaintiffs were in possession of various narcotics.

159. Each of the Individual Defendants, individually and collectively, commenced or continued, or caused the commencement or continuation of, criminal proceedings against the plaintiffs by intentionally and knowingly withholding evidence.

160. Specifically, Defendant DET. HERNANDEZ and the individual defendants knowingly and intentionally failed to convey exculpatory information that was within their possession, evidence which conclusively established that plaintiffs were not involved in any wrongdoing and that no probable cause existed for their warrantless arrests.

161. Defendant DET. HERNANDEZ and he individual defendants, individually and collectively, by transmitting false information and withholding exculpatory information, commenced or continued, or caused the commencement or continuation of, criminal proceedings without probable cause against the plaintiffs, by intentionally and knowingly committing, and/or failing to perform, various actions in bad faith.

162. Defendant DET. HENANDEZ and the individual defendants individually and collectively, by transmitting false information and withholding exculpatory information, commenced or continued, or caused the commencement or continuation of, criminal proceedings

against the plaintiffs without probable cause by recklessly and with gross negligence committing, and/or failing to perform, various actions.

163. Specifically, by transmitting false information and withholding exculpatory information which established that the plaintiffs were in fact innocent of any wrongdoing and that no probable cause existed for their warrantless arrests, Defendant DET. HERNANDEZ and the individual defendants deviated so egregiously from acceptable police activity as to demonstrate bad faith and an intentional or reckless disregard for proper procedures.

164. On October 10, 2023 the criminal proceedings against plaintiff ANTHONY HYMAN were terminated in his favor, and on May 15, 2023, the criminal proceedings against plaintiff REGENIA HYMAN were terminated.

165. Each of the Defendants, individually and collectively, were motivated to and did commence or continue, or caused the commencement or continuation of, criminal proceedings against the plaintiffs in order to conceal their dereliction of duty in executing a search warrant in their home that did not successfully find the evidence of criminal conduct they were seeking.

166. Each of the Defendants, individually and collectively, were motivated to and did commence or continue, or caused the commencement or continuation of, criminal proceedings against plaintiffs in order to conceal the dereliction of duty of Defendant DET. HERNANDEZ and the individual defendants in arresting the plaintiffs without probable cause or a warrant.

167. As a result of the foregoing, the plaintiffs were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, had their personal and

professional reputation destroyed, and suffered additional injury due to the significant harm wrought by this conduct on the health and well-being of plaintiff ANTHONY HYMAN.

168. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

SEVENTH CAUSE OF ACTION

Excessive Force

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiffs' Rights Under the Fourth and Fourteenth Amendments to the United States Constitution, and New York State Law

169. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

170. Defendants used force against Plaintiffs that was unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted the Individual Defendants.

171. The types and levels of force the Individual Defendants used against the plaintiffs were unjustified and objectively unreasonable, taking into consideration the facts and circumstances that confronted the Individual Defendants.

172. The Individual Defendants used types and levels of force against the plaintiffs that were in contravention of, or inconsistent with, related NYPD policies and/or training.

173. As a result of the Individual Defendants' acts and omissions, the Individual Defendants deprived the plaintiffs of their federal, state, and/or other legal rights; caused the plaintiffs bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused the plaintiffs to expend costs and expenses; and/or otherwise damaged and injured the plaintiffs.

EIGHT CAUSE OF ACTION
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983

174. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

175. Each Individual Defendant who was present when Defendant DET. HERNANDEZ and other individual defendants violated the plaintiffs Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiffs, whose constitutional rights were being violated in their presence by other officers.

176. Specifically, each of the individual Defendants who were present and observed the conduct of Defendant DET. HERNANDEZ and/or other individual defendants in arresting and/or causing the plaintiffs to be arrested without probable cause or a warrant, and who had the opportunity to intervene, had an affirmative duty to actually intervene on behalf of the plaintiffs, yet failed to intervene to prevent these unlawful arrests.

177. As a result of the foregoing, plaintiffs suffered serious injury, their liberty was restricted for an extended period of time, they were put in fear of their safety, their injuries worsened, they did not receive necessary medical treatment, and they were humiliated and subject to other physical constraints.

178. As a direct and proximate result of such acts, the Defendants, individually and collectively, deprived plaintiffs of their rights under the Constitutions and laws of the United States and of the State of New York.

NINTH CAUSE OF ACTION
STATE LAW CLAIM FOR DENIAL OF RIGHT TO FAIR TRIAL

179. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

180. Each of Defendant DET. HERNANDEZ and the other Individual Defendants participated in their official capacities in the detention of plaintiff REGENIA HYMAN and plaintiff ANTHONY HYMAN and the search of their home.

181. Each and all of the Individual Defendants investigated and participated in their official capacities in the detention of plaintiff REGENIA HYMAN and plaintiff ANTHONY HYMAN and the search of their home.

182. Defendants' search and investigation revealed and made them actually aware that plaintiffs were in fact actually innocent of any wrongdoing or crime.

183. Defendant NYPD DET. HERNANDEZ knowingly and intentionally transmitted false information to the Bronx County District Attorney by swearing in a criminal complaint that the plaintiffs had committed the crimes of Criminal possession of a controlled substance in the third degree, Criminal Possession of a controlled substance in the seventh degree, Criminally using drug paraphernalia.

184. Defendant NYPD DET. HERNANDEZ knowingly and intentionally transmitted false information to the Bronx County District Attorney by swearing in a criminal complaint that

the plaintiffs had conspired to possess such narcotics including multiple glassines, ziplock bags and tin foil containers of various narcotics.

185. Information transmitted by a police officer and stating that two individuals acted in concert in possessing narcotics is likely to influence the decision of any jury weighing the evidence presented in a prosecution of those criminal defendants.

186. Information transmitted by a police officer and stating that they found in the apartment home of criminal defendants various narcotics including multiple glassines, ziplock bags and tin foil containers of various narcotics is likely to influence the decision of any jury weighing the evidence presented in a prosecution of those criminal defendants.

187. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

TENTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER STATE LAW

188. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

189. Each of the Defendants, individually and collectively, intended to commence, cause the commencement of, or cause the continuation of, criminal proceedings against the plaintiffs, and each of them individually and collectively did in fact commence or continue, or

cause the commencement or continuation of, criminal proceedings against the plaintiffs without probable cause.

190. Each of the Individual Defendants, individually and collectively, commenced or continued, or caused the commencement or continuation of, criminal proceedings against the plaintiffs by intentionally and knowingly failing to make a complete and full statement of facts to the District Attorney.

191. Specifically, Defendant DET. HERNANDEZ knowingly and intentionally transmitted false information to the Bronx County District Attorney by swearing in a criminal complaint that plaintiffs had conspired with each other, and that the plaintiffs were in possession of various narcotics.

192. Each of the Individual Defendants, individually and collectively, commenced or continued, or caused the commencement or continuation of, criminal proceedings against the plaintiffs by intentionally and knowingly withholding evidence.

193. Specifically, Defendant DET. HERNANDEZ and the Individual Defendants knowingly and intentionally failed to convey exculpatory information that was within their possession, evidence which conclusively established that plaintiffs were not involved in any wrongdoing and that no probable cause existed for their warrantless arrests.

194. Defendant DET. HERNANDEZ and the Individual Defendants, individually and collectively, by transmitting false information and withholding exculpatory information, commenced or continued, or caused the commencement or continuation of, criminal proceedings without probable cause against the plaintiffs, by intentionally and knowingly committing, and/or failing to perform, various actions in bad faith.

195. Defendant DET. HENANDEZ and the Individual Defendants individually and collectively, by transmitting false information and withholding exculpatory information, commenced or continued, or caused the commencement or continuation of, criminal proceedings against the plaintiffs without probable cause by recklessly and with gross negligence committing, and/or failing to perform, various actions.

196. Specifically, by transmitting false information and withholding exculpatory information which established that the plaintiffs were in fact innocent of any wrongdoing and that no probable cause existed for their warrantless arrests, Defendant DET. HERNANDEZ and the Individual Defendants deviated so egregiously from acceptable police activity as to demonstrate bad faith and an intentional or reckless disregard for proper procedures.

197. On October 10, 2023 the criminal proceedings against plaintiff ANTHONY HYMAN were terminated in his favor, and on May 15, 2023, the criminal proceedings against plaintiff REGENIA HYMAN were terminated.

198. Each of the defendants, individually and collectively, were motivated to and did commence or continue, or caused the commencement or continuation of, criminal proceedings against the plaintiffs in order to conceal their dereliction of duty in executing a search warrant in their home that did not successfully find the evidence of criminal conduct they were seeking.

199. Each of the defendants, individually and collectively, were motivated to and did commence or continue, or caused the commencement or continuation of, criminal proceedings against the plaintiffs in order to conceal the dereliction of duty of Defendant DET. HERNANDEZ and the individual defendants in arresting the plaintiffs without probable cause or a warrant.

200. As a result of the foregoing, the plaintiffs were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, had their personal and professional reputation destroyed, and suffered additional injury due to the significant harm wrought by this conduct on the health and well-being of plaintiff ANTHONY HYMAN.

201. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

ELEVENTH CAUSE OF ACTION
New York State Constitutional Violations

202. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

203. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, Article I, §§ 6 and 12, including her rights to:

- A. freedom from unreasonable searches and seizures; and
- B. freedom from deprivation of property without due process of law.

204. Defendants' deprivation of plaintiff's rights under the New York State Constitution resulted in the injuries and damages set forth above.

TWELTH CAUSE OF ACTION
Violation of New York City Administrative
Code § 8-802 Deprivation of Rights

205. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

206. The acts of the individual defendants constituted conduct under color of the laws of the State of New York, under color of the laws, rules, and regulations of the City of New York, and under color of the customs and usages of the City of New York and of the New York City Police Department.

207. The acts of the individual defendants caused the plaintiffs to be deprived of the right, as it is granted and guaranteed to them by N.Y.C. Admin. Code §§ 8 – 802, to be secure in their persons against unreasonable searches and seizures.

208. The acts of the Individual Defendants caused the plaintiffs to be deprived of the right, as it is granted and guaranteed to him by N.Y.C. Admin. Code §§ 8 – 802, to be secure in his person against the use of excessive force in connection with Defendants' search and seizure of the plaintiffs.

209. The Individual Defendants, while in uniform, unlawfully searched, seized and arrested the plaintiffs inside their home in violation of N.Y.C. Admin. Code §§ 8 – 802.

210. The Individual Defendants, while in uniform, continued to confine and seize Plaintiff at the 49th Precinct after they had actual knowledge that the plaintiffs were in fact innocent of all wrongdoing, in violation of N.Y.C. Admin. Code §§ 8 – 802.

211. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional

distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

212. As a result of the above conduct, the City of New York is liable, under New York City Administrative Code § 8-803(b) and under the doctrine of respondeat superior, for the conduct of the individual defendants, and for any damages the individual defendants caused by and through their conduct.

THIRTEENTH CAUSE OF ACTION
Violation of New York City Administrative Code § 8-803
Failure To Intervene

213. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

214. The acts of all Individual Defendants constituted conduct under color of the laws of the State of New York, under color of the laws, rules, and regulations of the City of New York, and under color of the customs and usages of the City of New York and of the New York City Police Department.

215. The failure of the Individual Defendants to intervene, in violation of N.Y.C. Admin. Code § 8 – 803, caused the plaintiffs to be deprived of their rights, as it is granted and guaranteed to them by N.Y.C. Admin. Code § 8 – 802, to be secure in their persons against unreasonable searches and seizures.

216. The failure of Individual Defendants to intervene caused the plaintiffs to be deprived of their rights, as it is granted and guaranteed to them by N.Y.C. Admin. Code § 8 – 802, to be secure in their persons against unreasonable searches and seizures.

217. The failure of some of the Individual Defendants to intervene while other Individual Defendants unlawfully searched, used excessive force, seized and arrested the plaintiffs in their home, caused the plaintiffs to be deprived of their rights to be secure against such illegal acts as it is granted and guaranteed to them by N.Y.C. Admin. Code §§ 8 – 802.

218. The failure of the Individual Defendants to intervene while other Individual Defendants continued to confine and seize the plaintiffs at the 49th Precinct and then in an NYPD van at a local McDonald's parking lot, after they had actual knowledge that the plaintiffs were innocent in fact of all wrongdoing and in violation of N.Y.C. Admin. Code §§ 8 – 802, caused the plaintiffs to be deprived of their rights to be secure against such illegal acts as it is granted and guaranteed to them by N.Y.C. Admin. Code §§ 8 – 802.

219. As a result of the foregoing, plaintiffs REGENIA HYMAN and ANTHONY HYMAN were deprived of their liberty, were denied fundamental constitutional rights, were publicly embarrassed and humiliated, were caused to suffer severe physical harm and emotional distress, were incarcerated and forced to incur substantial legal expenses and costs to defend themselves and obtain their liberty, were caused to feel unwell during the arrest processing leading to seizures, pulselessness, intensive care, hospitalization and more harm, as well as having their personal reputation and good names among their neighbors destroyed.

220. As a result of the above conduct, the City of New York is liable, under New York City Administrative Code § 8-803(b) and under the doctrine of respondeat superior, for the conduct of the individual defendants, and for any damages the individual defendants caused by and through their conduct.

FOURTEENTH CAUSE OF ACTION**Conversion**

221. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

222. The defendants, by the aforementioned acts, did intentionally and without authority assume or exercise control over the aforementioned property belonging to plaintiff, interfering with plaintiff's right of possession and causing damage to plaintiff's property.

223. Defendants' actions resulted in the injuries and damages set forth above.

FIFTEENTH CAUSE OF ACTION**Intentional Infliction of Emotional Distress**

224. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

225. The Individual Defendants, by the aforementioned acts, did commit extreme and outrageous conduct and thereby intentionally and/or recklessly caused the plaintiffs to suffer severe mental and emotional distress, pain and suffering, and damage to name and reputation.

226. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for the plaintiff's rights and are therefore liable for punitive damages.

SIXTEENTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

227. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

228. The Individual Defendants, by their aforementioned acts, did negligently cause the plaintiffs to suffer mental and emotional distress, pain and suffering, and damage to name and reputation.

SEVENTEENTH CAUSE OF ACTION
Negligence of the Individual Defendants

229. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

230. The Individual Defendants owed the plaintiffs a duty to use due care, including a duty not to perform an unreasonable search and a duty not to excessively damage property during their search of the plaintiffs' home. By their aforementioned acts, the Individual Defendants negligently breached their duty to use due care in the performance of their duties, and failed to perform their duties as a reasonably prudent and careful officer and/or supervisor would have done under similar circumstances.

231. Once the Individual Defendants entered the home of the plaintiffs and learned that plaintiff ANHONY HYMAN was recovering from serious spine surgery and had ongoing injuries, the individual defendants undertook a duty to protect him during their policing responsibilities.

232. By putting a foot on the back of the neck of plaintiff HYMAN, the Individual Defendants violated the duty of care owed to the plaintiffs.

233. Once the Individual Defendants understood that plaintiff ANTHONY HYMAN was having a negative health response to the NYPD interaction, by continuing to detain plaintiff ANTHONY HYMAN and not seek medical attention, the Individual Defendants undertook a duty to protect him during their policing responsibilities.

234. By failing to properly secure plaintiff ANTHONY HYMAN in the vehicle, the individual defendants violated the duty of care owed to the plaintiffs.

235. By failing to bring plaintiff ANTHONY HYMAN to the hospital and instead going to McDonalds, the Individual Defendants violated the duty of care owed to the plaintiffs.

236. NYPD officers and supervisors who observed other officers violating the Fourth Amendment rights of the plaintiffs and breaching their duty of due care were negligent in failing to intervene and stop fellow officers from committing said violations.

237. The negligent actions of the Individual Defendants directly and proximately caused the plaintiffs' injuries and damages set forth above.

EIGHTEENTH CAUSE OF ACTION
Negligent Supervision

238. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

239. The Individual Defendants owed plaintiff a duty to use due care at or about the time of the incidents described above.

240. Defendants RICHARD / RENE ROE, who were the supervising officer present at the incidents described above (i) at the plaintiffs' home, (ii) at the 49th precinct, (iii) in the prisoner van that stopped at McDonalds, and defendant the CITY, negligently supervised the Individual Defendant officers who searched plaintiffs' home by failing to provide proper training, outline proper procedure, and provide proper supervision on the scene regarding searching a home and safeguarding individuals in their home without causing excessive damage to persons or property

241. Defendants RICHARD / RENE ROE, who were the supervising officer present at the incidents described above at the plaintiffs' home, and defendant the CITY, negligently supervised the individual defendant officers who searched plaintiffs' home by failing to provide

proper training, outline proper procedure, and provide proper supervision on the scene regarding searching a home and safeguarding individuals in their home without causing excessive damage to persons or property.

242. Defendants RICHARD / RENE ROE, who were the supervising officer present at the incidents described above at the 49th precinct, and defendant the CITY, negligently supervised the individual defendant officers who processed the plaintiffs and failed to assist them in obtaining appropriate medical attention, by failing to provide proper training, outline proper procedure, and provide proper supervision at the precinct regarding identifying an arrestee in medical distress and seeking to provide medical attention for an arrestee in distress.

243. Defendants RICHARD / RENE ROE, who were the supervising officer present at the incidents described above who oversaw and supervised the individual defendant officers in the prisoner van that stopped at McDonalds, and defendant the CITY, negligently supervised the Individual Defendant officers who brought the plaintiffs to a McDonalds rather than to a hospital to obtain appropriate medical attention, by failing to provide proper training, outline proper procedure, and provide proper supervision of these individual officers regarding identifying an arrestee in medical distress and providing to facilitate medical attention for an arrestee in distress rather than seeking to feed them.

244. In committing the aforementioned acts or omissions, defendants RICHARD / RENE ROE and the CITY OF NEW YORK negligently breached their duty to use due care, which directly and proximately resulted in the injuries and damages to the plaintiffs as alleged herein.

NINETEENTH CAUSE OF ACTION**Violation of Civil Rights Law § 28**

245. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

246. While in the custody of the NYPD, plaintiff ANTHONY HYMAN was clearly and obviously in medical distress.

247. While in the custody of the NYPD, plaintiff ANTHONY HYMAN's injuries were emergent, obvious and had been caused by members of the NYPD.

248. While in the custody of the NYPD, members of the NYPD were cognizant of the injuries of plaintiff ANTHONY HYMAN as was evident by their conduct in, among other things, providing him with water, dabbing sweat from his face and head, seeking to obtain food for him prior to bringing him to central booking.

249. Thus, defendant the CITY and the Individual Defendants had a duty to provide reasonable care to plaintiff ANTHONY HYMAN in good faith.

250. Defendants breached this duty.

TWENTIETH CAUSE OF ACTION**LOSS OF CONSORTIUM & SERVICES**

251. Plaintiff REGENIA HYMAN repeats and realleges each and every allegation as if fully set forth herein.

252. That at all times hereto before mentioned, plaintiff REGENIA HYMAN was the lawful wife of plaintiff ANTHONY HYMAN.

253. That prior to this incident described herein, plaintiff ANTHONY HYMAN was responsible for all of the services in their home including, cooking, cleaning, laundry, shopping and all of the daily services involved in the upkeep of a home.

254. That as a result of the foregoing and specifically as a result of the actions taken by the City of New York, the Individual Defendants, the defendants, their agents, servants and/or employees set forth previously, the individual plaintiff, REGEIA HYMAN was and still is and will continue in the future to be deprived of the same love, affection, society, consortium, services and husbandry functions of her husband, plaintiff ANTHONY HYMAN, and has been caused and will be caused to expend sums of money to have cared for him and provide services to him as a result of his injuries and/or disability and this plaintiff was otherwise damaged.

255. That by reason of the foregoing, this plaintiff is entitled to recover from the defendants for all of the damages and injuries suffered by her including but not limited to compensation for services and care provided and to be provided, expenses sustained and to be sustained.

TWENTY-FIRST CAUSE OF ACTION
DELIBERATE INDIFFERENCE TO MEDICAL NEEDS

256. Plaintiff ANTHONY HYMAN repeats and realleges each and every allegation as if fully set forth herein.

257. Defendants despite being aware that plaintiff ANTHONY HYMAN was recovering from a serious neck surgery, and being told by plaintiff REGENIA HYMAN, that plaintiff ANTHONY HYMAN was not well and being able to observe plaintiff ANTHONY HYMAN sweating, slurring his words, falling into the van, all while in their custody and control, requiring treatment from medical professionals, they delayed plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

258. The delay in medical treatment to plaintiff ANTHONY HYMAN's injuries resulted in plaintiff ANTHONY HYMAN suffering seizures, 'coding' or becoming pulseless, undergoing life saving techniques, being in intensive care for more than one week, and

hospitalized for three weeks suffering significant harm, that would have been prevented if plaintiff ANTHONY HYMAN had received treatment in a timely manner.

259. As a direct and proximate result of such acts, defendants deprived plaintiff ANTHONY HYMAN of his rights under the laws of the State of New York.

260. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

261. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

262. As a result of the aforementioned conduct of defendants, plaintiff ANTHONY HYMAN sustained injuries, including but not limited to emotional and psychological injuries.

TWENTY-SECOND CAUSE OF ACTION
Municipal Liability Pursuant to 42 U.S.C. § 1983

263. The plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

264. Defendant the CITY, acting through its police department and through the individual defendants, maintained policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

265. Upon information and belief, defendant the CITY failed to provide any training to its police officers, either during the Police Academy or after, either formally or informally, on the constitutional prohibitions on causing unnecessary and excessive damage to people and/or property during the execution of search warrants.

266. Upon information and belief, defendant the CITY maintained no written guidelines on the constitutional prohibitions on causing unnecessary and excessive damage to people and/or property during the execution of search warrants.

267. Defendant the CITY knew to a moral certainty that its police officers would be required to execute search warrants, and the defendant the CITY empowered them to do so, and therefore the need to train officers in the constitutional limitations on causing unnecessary or excessive damage to people and/or property during the execution of a search warrant was obvious.

268. In fact, many of the individual defendants have histories of engaging in the kind of misconduct complained of herein, evidenced in, CCRB complaints and in numerous lawsuits, among other places.

269. Defendant the CITY OF NEW YORK has been put on notice that absent training for its officers in the constitutional limitations on causing unnecessary or excessive damage to people and/or property during the execution of a search warrant, its officers would cause harm to people and property and violate the constitutional rights of the subject of the search, similar to what plaintiffs REGENIA and ANTHONY HYMAN experienced. Such notice includes:

- i. Daniels v. City of New York, 16-cv-0190. Facts included that police officers entered apartment in early morning hours with a search warrant. Plaintiff Amber Daniels was in bed and naked or nearly naked and was held in that condition for a long period of time while the officers searched the house.
- ii. Fowler-Washington v. City of New York, 19-cv-6590. Police executed a search warrant in client's apartment where he lived with sister and mother. Client was struck in the head several times and needed 19 stitches or staples to close the wound. Defendant CITY paid \$150,000 to resolve these claims.
- iii. Haskins v. Jackson, 15-cv-2016. Search warrant executed at 6am in a home. The Narcotics Detective claimed that narcotics were in plain view

in transparent tupperware in the living room closet. At trial, it was proven that closet was closed, nothing in plain view, one individual had showed Detective and officers where drugs were located and took responsibility for them, and the defendants still arrested everyone in the home. Jury verdict for plaintiffs in the amount of \$120,000. A total settlement with fees of \$330,000.

- iv. Natash Smith v. City of New York, 14-cv-5841. Search warrant was executed in apartment, nobody was a drug dealer but police ransacked home and found a small amount of marijuana used by a resident who was suffering from cancer. Case settled for \$155,000.
- v. Stefan John, et al v. City of New York, 13-cv-50866. Search warrant executed in apartment. Five individuals arrested, apartment ransacked, holes in the wall, individuals harmed. Case settled for \$300,000.
- vi. Marcus v. City of New York, 14-cv-03296. Individual arrested in his home by Defendant DET. HERNANDEZ and injured during arrest. Among the claims brought against Defendant DET. HERNANDEZ was deliberate indifferent to the medical needs of the arrestee.

270. Moreover, defendant the CITY OF NEW YORK, had notice that some of these same individual defendants required training on these issues in order to avoid violating the Constitutional Rights of New Yorkers. Such notice includes:

- i. CCRB Investigation 2016000660 where abuse of authority charges were substantiated against Defendant Cepeda for ‘premises entered and/or searched.’
- ii. NYPD Case N. 2017-18004 where defendant Jose Cintron was found to have unlawfully entered someone’s home and violated their Constitutional Rights. Defendant CINTRON has at least two other substantiated charges against him, as well as being a defendant in at least eleven known lawsuits that have settled in amounts ranging from \$13,443 to \$155,006. (Wallace v. Cintron, 22352/2020E (Bronx Supreme); Subramany v. CNY, 023869/2020 (Bronx Supreme); Sanders v. Cintron, (19-cv-5525 SDNY); Hulcome v. CNY, 021478/2018 (Bronx Supreme); Griffin v. CNY, 301697/2016 (Bronx Supreme); Lopez v. CNY, 022333/2016E (Bronx Supreme); Mercado v. CNY, 304375/2015 (Bronx Supreme); Walston v. CNY, (15-cv-5203 SDNY); Pow v. CNY, (2014 Bronx Supreme); Diaz v. CNY, (13-cv-7612 SDNY); Ocasio v. CNY (13-cv-3942 SDNY), Felix v. CNY, (13-cv-2941 SDNY)).

- iii. Defendant Daniel Boylan has 9 different substantiated allegations including 2 for physical force, 2 for discourtesy word, four for abuse of authority. He is also listed on the adverse credibility list of officers compiled by New York City District Attorney offices that maintains lists of officers with potential credibility problems and adverse credibility rulings by judges.
- iv. CCRB investigation 201706222 substantiated a charge against defendant Cecilia Luckie for failing to obtain medical treatment for an arrestee.
- v. *Beckford v. City of New York, Wilbert Hernandez*, 16-cv-2261. Defendant DET. HERNANDEZ sued for unlawfully arresting family members in front of their home and making false allegations to the Bronx District Attorney's Office that were included in criminal complaints which were eventually dismissed.
- vi. CCRB Investigations showed multiple substantiated charges against defendant CINTRON including for premises entered and searched, threat to damage/seize property and failure to provide RTKA card.
- vii. Both Defendants DET. DEGROTE and DET. HERNANDEZ were named as defendants in Duncan v. CNY, 814607/2023E (Bronx County), where it is alleged that they made a false arrest and lied to the Bronx District Attorney about drugs found on the arrestee that did not exist.
- viii. Defendant DET. DEGROTE is a defendant in *Gengaro v. CNY*, 801403/2021E (Bronx Supreme) wherein it is alleged he falsely arrested the plaintiff in her apartment and lied to the Bronx District Attorney's Office about the arrestee having narcotics in her possession. The criminal charges were dismissed. This case is ongoing.

271. The failure of defendant the CITY OF NEW YORK to properly discipline its police officers after they are accused of violating an individual's constitutional rights, including failure to provide medical attention, falsely reporting information to the Bronx County District Attorney, entering someone's home and arresting them without cause and physically harming them, amount to deliberate indifference to the rights of persons with whom the police come into contact.

272. The failure of defendant the CITY OF NEW YORK to train its police officers or provide guidelines to its officers in the constitutional prohibitions on causing unnecessary and excessive damage to people and/or property during the execution of search warrants amounts to deliberate indifference to the rights of persons with whom the police come into contact.

273. Defendant the CITY OF NEW YORK implemented, enforced, encouraged, sanctioned and/or ratified policies, practices, and/or customs of failing to train its police officers and failing to implement guidelines on the constitutional prohibitions on causing unnecessary and excessive damage to people and/or property during the execution of search warrants.

274. By implementing, enforcing, encouraging, sanctioning and/or ratifying these policies, practices, and/or customs, defendant the CITY OF NEW YORK caused the plaintiffs to be subjected to excessive and/or unnecessary harm to people and destruction of property during the search of their home, and deprived of property without due process of law, in violation of their rights guaranteed to every citizen of the United States by the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

275. The defendant CITY has a policy of not reviewing allegations in lawsuits and complaints in updating policy and training needs of the NYPD.

276. For example, in a deposition in *Packard v. City of New York*, 15-cv-7130 (S.D.N.Y.), the City of New York testified that in regards to arrests it did not review (i) decline to prosecute decisions, (ii) or allegations and settlements in lawsuits relating to policing.

277. As another example, Defendant CITY OF NEW YORK has testified that it does not take allegations in lawsuits filed by individuals into account in considering its policing policies and training, in effect taking the position that there is nothing to be learned from lawsuits and settlements.

278. For example, in a 2017 deposition, Defendant CITY OF NEW YORK could identify no impact litigation against Defendant City between 2000 and 2011 had on Defendant City's relevant policies, practices, customs, or training.

279. For example, in a 2013 deposition in *McClary v. City of New York*, 12-cv-118 (S.D.N.Y.), Defendant CITY OF NEW YORK testified that there is no training to members of the NYPD "about the manner in which search warrants are executed."

280. Despite the wealth of evidence of NYPD members' historical failures that (i) allowed the individual defendants to continue in their unlawful conduct of lying to district attorneys about drugs being found when none were, (ii) allowing the NYPD to continue to authorize its officers to exercise searches of people's homes without proper training, and (iii) depriving medical attention to individuals in the care and custody of the NYPD, Defendant CITY has ignored, and/or failed to utilize, relevant information, including information gleaned from reports and lawsuits, as well as other data points, to identify deficiencies in NYPD training as it relates to the constitutional violations suffered by these plaintiffs.

281. The defendant CITY has a policy of not reviewing lawsuit settlements and verdicts with individual defendant members of the NYPD who were alleged in such lawsuits to have violated the rights of plaintiffs in such suits.

282. The defendant CITY has a policy of not disciplining individual defendant members of the NYPD who were alleged in to have violated the rights of plaintiffs in lawsuits that are settled.

283. The defendant CITY has a policy of not disciplining individual defendant members of the NYPD who were alleged in to have violated the rights of plaintiffs in lawsuits that result in a verdict or finding against the individual defendant members of the NYPD.

284. As an example, Captain Edward Winski was named in numerous lawsuits arising out of Occupy Wall Street in New York City.

285. Many of these lawsuits were settled with payments to plaintiffs and their counsel.

286. One of these lawsuits went to trial in which a jury found that Defendant Winski violated the constitutional rights of the plaintiff.

287. Defendant CITY has admitted in discovery demands in a subsequent lawsuit that Defendant Winski suffered no discipline as a result of that jury finding.

288. Defendant Winski has been promoted numerous times since the incident in 2011 that led to the jury verdict. At the time of the verdict, his rank was Deputy Inspector. Currently his rank is Deputy Chief.

289. As an example, in 2004 Deputy Chief Terrence Monahan made unlawful arrests of numerous people at Fulton Street in Manhattan.

290. In 2012, in a lawsuit brought against Deputy Chief Terrence Monahan for those unlawful arrests, a Federal Judge ruled that Deputy Chief Terrence Monahan falsely arrested multiple individuals without probable cause.

291. In a 2023 deposition of Terrence Monahan, he admitted that he suffered no adverse employment consequences due to the finding against him in that lawsuit and received no discipline.

292. Despite this finding of wrongdoing, Terrence Monahan was promoted to a two-star Assistant Chief in 2014, a three star Chief of Patrol in 2016 and a four star Chief of Department in 2018.

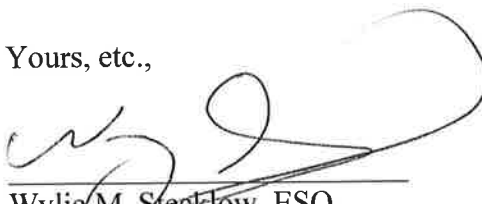
293. As a result of the foregoing policies and practices of the defendant CITY, the plaintiffs suffered the injuries and damages alleged herein.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs REGENIA HYMAN and ANTHONY HYMAN demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action, inclusive of punitive damages and attorneys' fees, and inclusive of costs and disbursements of this action and inclusive of statutory interest on such damages, costs and fees, and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1983, 1988, and including reasonable attorney's fees and court costs pursuant to N.Y.C. Admin. Code §§ 8 – 805 and pursuant to Civil Rights Law §28.

Dated: New York, New York
May 29, 2024

Yours, etc.,



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ATTORNEY'S VERIFICATION

WYLIE M. STECKLOW, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm **WYLIE STECKLOW PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not by the Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
May 29, 2024



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